

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
LIONEL HUDSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, "JOHN DOE" POLICE
OFFICER-Shield No.: 19891, and "JOHN DOES"
POLICE OFFICERS as yet to be identified,

Defendants.

Index No.:

Date purchased: 7/14/2022

Plaintiff designates
KINGS County
as the place of Trial.**SUMMONS**

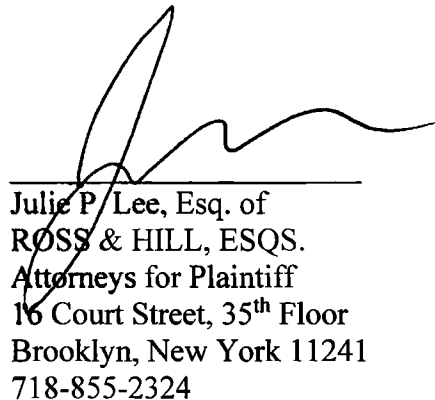
The basis of the venue is

Place of Occurrence:

Brooklyn, NY

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York
July 12, 2022
Julie P. Lee, Esq. of
ROSS & HILL, ESQS.
Attorneys for Plaintiff
16 Court Street, 35th Floor
Brooklyn, New York 11241
718-855-2324

Notice: The nature of this action: negligence, personal injuries, assault, battery, excessive force, and violation of civil rights.

The relief sought is monetary damages: compensatory damages.

Upon your failure to appear, judgment will be taken against you by default in a sum which exceeds the jurisdiction of any lower court, together with interest from March 2, 2022 and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.:

LIONEL HUDSON,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, "JOHN DOE" POLICE
OFFICER Shield No.: 19891, and "JOHN DOES"
POLICE OFFICERS, as yet to be identified,

Defendants.

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Plaintiff herein, by his attorneys, Ross and Hill, Esqs., complaining of the above-named defendants, respectfully shows to the Court and allege the following upon information and belief:

1. At all times hereinafter mentioned, plaintiff was and still is a resident of Kings County, City and the State of New York.

2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. At all times hereinafter mentioned, defendant THE NEW YORK CITY POLICE DEPARTMENT is a police force maintained and acting on behalf of defendant THE CITY OF NEW YORK to perform police duties and to protect the health, welfare, property, and safety of those lawfully residing within the jurisdiction of the City of New York.

4. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK, its agents, servants, and employees operated, maintained, and controlled THE NEW YORK CITY POLICE DEPARTMENT including all the police officers thereof, including those police officers

at the 60th Precinct.

5. On May 27, 2022, plaintiff's Notice of Claim was made and served upon defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, with said service occurring within ninety (90) days of the incident giving rise to this lawsuit.

6. That to date, defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT have not held or scheduled a municipal hearing Pursuant General Municipal Law Section 50-h.

7. That more than thirty (30) days have elapsed since the service of the Notice of Claim and adjustment or payment of plaintiff's claim has been neglected or refused.

8. That this action is being commenced within one (1) year and ninety (90) days after the happening of the events upon which the claim is based.

9. That on March 2, 2022, at approximately 1:30 p.m., plaintiff was on West 16th Street at or near its intersection with Mermaid Avenue, Brooklyn, New York.

10. That on March 2, 2022, defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT employed defendant POLCE OFFICER "JOHN DOE"-Shield No. 19891 and POLCE OFFICERS "JOHN DOES", as yet to be identified, as police officers, agents, servants, and/or employees.

11. That while at the aforementioned location, the aforementioned police officers, from the 60th precinct, approached plaintiff and used unnecessary and excessive force against plaintiff.

12. That on March 2, 2022, and at all times hereinafter mentioned and upon information and belief, the plaintiff was assaulted and battered by defendants POLICE OFFICER "JOHN DOE"-Shield No. 19891, and POLICE OFFICERS JOHN DOES- as yet to be identified, who were acting within the scope of their employment with defendants THE CITY OF NEW YORK and

THE NEW YORK CITY POLICE DEPARTMENT at the aforesaid location.

13. That on March 2, 2022, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally, and wantonly and with deliberate disregard for plaintiff's interests.

14. By reason of said assault and battery the plaintiff was caused to suffer severe and serious bodily injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish, and psychological trauma, and continues to suffer same to date.

15. That defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT did not exercise reasonable care and diligence in the selection, engagement, employment, and training of their police officers, agents, servants, and employees and were negligent in the hiring, training, and retention of defendants POLICE OFFICER "JOHN DOE-Shield No. 19891, and POLICE OFFICERS JOHN DOES- as yet to be identified, who assaulted, battered, and violated the civil rights of the plaintiff.

16. That the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT had prior knowledge of the inappropriate, unlawful, and improper conduct of defendants POLICE OFFICER "JOHN DOE-Shield No. 19891, and POLICE OFFICERS JOHN DOES- as yet to be identified, and continued to employ them and allowed them to be in contact with the public at large.

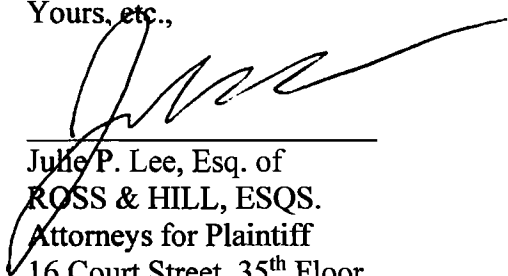
17. The incident as aforescribed resulted from the wanton and reckless conduct of the defendants, their agents, servants, and/or employees, and without any of the plaintiff's conduct contributing thereto.

18. As a result of the foregoing, plaintiff sustained compensatory damages in an amount that exceeds the jurisdiction of any lower court.

WHEREFORE, plaintiff demands judgment against the defendants in amounts that exceed the jurisdiction of any lower court, with interest, costs and disbursements of the action.

Dated: Brooklyn, New York
July 12, 2022

Yours, etc.,



Julie P. Lee, Esq. of
ROSS & HILL, ESQS.
Attorneys for Plaintiff
16 Court Street, 35th Floor
Brooklyn
718-855-2324

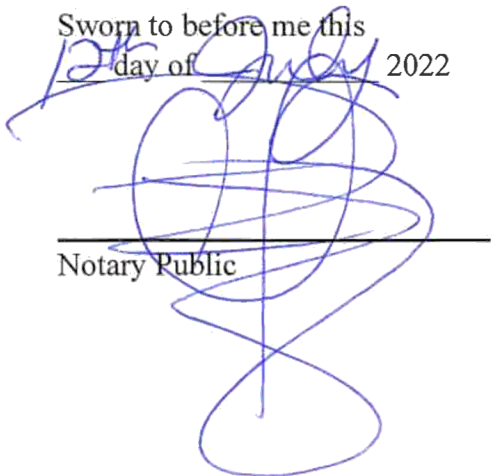
STATE OF NEW YORK, COUNTY OF KINGS) s.s.:

LIONEL HUDSON, being duly sworn, deposes and says:

I am the plaintiff in the within action, have read the foregoing **COMPLAINT** and know the contents thereof; that same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief and as to those matters, I believe it to be true.


LIONEL HUDSON

Sworn to before me this
12th day of July 2022


Notary Public



Index No.:

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

LIONEL HUDSON,

Plaintiff,

-against-

**THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, “JOHN
DOE” POLICE OFFICER-Shield No.: 19891, and “JOHN DOES” POLICE OFFICERS as
yet to be identified,**

Defendants.

SUMMONS & VERIFIED COMPLAINT

**ROSS AND HILL, ESQS.
Attorneys for Plaintiff
Office and Post Office Address
16 Court Street, 35th Floor
NEW YORK, New York 11241
Tel (718) 855-2324
Fax (718) 855-4617**

To:

**Service of a copy of the within
is hereby admitted.**

Dated:

Attorney(s) for
